
Why Swalwell and Gonzales were forced to resign.

Published by

Estimated reading time

7 min

Added on

2026-04-17

Address

<https://slate.com/news-and-politics/2026/04/swalwell-gonzales-resignations-what-next.html>

Why Swalwell and Gonzales were forced to resign.

[Sign up for the Slatest](#) to get the most insightful analysis, criticism, and advice out there, delivered to your inbox daily.

Reps. Anna Paulina Luna, a Republican, and Teresa Leger Fernández, a Democrat, may only be in their second and third terms in Congress, respectively. But this week, they jointly assigned themselves a powerful role in the body: executioners. The two worked in tandem, and without the permission of their leaders, to push a couple of creeps in the House of Representatives accused of sexual misconduct against their staff—GOP Rep. Tony Gonzales and Democratic Rep. Eric Swalwell—into involuntary retirement.

Armed with the threat of forcing votes to expel the members, the two used social media to update the public regularly on their progress. On Sunday, [Luna posted](#) that Swalwell had “24 hours to announce you are resigning.” Shortly after Swalwell obeyed on Monday, Luna served notice to Gonzales that he, too, [had better](#) “resign immediately.” Gonzales immediately announced he would. [Luna](#) and [Leger Fernández](#) still didn’t let up, saying that they would force the votes to expel the representatives if their resignations weren’t officially tendered by 2 p.m. Tuesday. Both men met the deadline.

The sharp axe of member-driven justice may not end there, as the House returned to a bevy of simmering misdeeds following its two-week recess. Luna has already served notice to Florida Democratic Rep. Sheila Cherfilus-McCormick, whose ethics investigation into allegedly routing her company’s Federal Emergency Management Agency overpayments toward her campaigns is nearly complete—and [not looking good](#). “We have your expulsion vote ready to be called up on the 21st,” [Luna posted Tuesday](#). “Either resign or be expelled.” Meanwhile, Democrats—and some Republicans—are eyeing Florida GOP Rep. Cory Mills, who’s under ethics investigation for [a broad list](#) of allegations relating to his campaign finances, his businesses, and “sexual misconduct and/or dating violence” relating to [two different women](#).

How, in a legislative body that has always maintained a large contingent of scoundrels, did Swalwell and Gonzales get the boot in such quick succession—with more potentially in the pipeline? Campaign finance infractions and sexual misconduct against staff are not new developments in the House of Representatives. Nor are members choosing to resign instead of waiting for a gnarly Ethics Committee report to drop. What is new, and fitting with recent trends in the House, is the way rank-and-file members, at least in the cases of Swalwell and Gonzales, are willing to wrest control of the disciplinary process to push out bad actors more quickly than usual.

In recent years, members have felt increasingly empowered to make moves previously considered taboo: forcing votes on [impeachment articles](#), [censuring members](#), [ousting the speaker](#), signing discharge petitions to get [votes on bills](#) that the speaker won’t consider, or blocking [previously rubber-stamped procedural votes](#) as leverage. These cavalier episodes have especially picked up in the current House, which is nearly equally divided between Democrats and Republicans. Every vote, and every ego, counts. So leaders have more trouble either credibly threatening bad members to resign or dissuading other members from taking justice into their own hands. Individual members threatening expulsion votes was the next logical step.

“The explosion of people” [using their privileges](#) to force votes “unilaterally in the last two to three years, and a little bit more in the last 10, has opened up some of the bomb throwers’ eyes to the

ability to do this, and they don't care what the leadership says, and they're not going to be bought off to not do this," Matt Glassman, a senior fellow at Georgetown's Government Affairs Institute and a former Hill staffer, told me.

Leaders prefer to handle discipline quietly, at the pace of their choosing. They don't want the House to turn into a circus of individual members forcing votes to reprimand one another, and they also don't want embarrassing information aired publicly that could reflect poorly on the party. The House Ethics Committee exists, then, to take justice away from hotheads and into a fair process typically run by more levelheaded members, in total privacy. *If* someone's alleged violation of conduct—such as, say, a member [offering a female staffer](#) \$5 million to carry his baby—is so bad that it's best for the party to get a quick resignation, the leader prefers to lean on them in private.

The horrific allegations against both Gonzales and Swalwell comfortably met the bar for hasty resolution. It's against House rules for a member to have a sexual relationship with a staffer, and Gonzales [had an affair with a staffer](#) who then died by self-immolation after the relationship was called off. Swalwell—only a week ago a Democratic front-runner in the California governor's race—[has been accused](#) by a former staffer of rape, along with allegations from a [still-growing number](#) of women involving all sorts of sexual misconduct, from [unsolicited nude photos](#) to assault. (Swalwell strongly denies it all.)

Although these cases were duly referred to the Ethics Committee, [neither leader](#) from either party was publicly calling on their own member to resign from Congress. While it may be unsporting and cynical to observe, leaders seem to be particularly reluctant to force out their own given the narrow margin in Congress, with every vote counting. And so there has been a pileup of ignominy referred to a busier-than-ever Ethics Committee.

By a certain sick logic, though, the revelations against Swalwell provided an opportunity for the House to take some of that work off the committee's plate: It allowed for each party to, essentially, dump one of its own and maintain the body's balance of power. And so Luna and Leger Fernández essentially brokered that compromise.

While Luna was preparing to force the vote to expel Swalwell, rank-and-file Democrats hardly needed convincing from their leaders. Among Democratic women especially who've felt empowered since the #MeToo movement, there was a thirst to get rid of Swalwell, quickly, with or without a green light from party leadership. Luna then coordinated with Leger Fernández, who had readied an expulsion resolution against Gonzales, to force out the pair almost simultaneously. Like Swalwell with Democrats, Gonzales would not be missed among Republicans. Swalwell and Gonzales could see the writing on the wall: These expulsion votes, when forced, wouldn't go well for them.

Related From Slate



Dahlia Lithwick

Why Forgetting About Impeachment and Moving On Is a Terrible Idea

Read More

“If it wouldn’t have been for those resolutions that we were each filing,” Leger Fernández [told CBS News](#), “they wouldn’t have resigned.”

Two down. But will there be another two—in another bipartisan pairing—to go?

Both Cherfilus-McCormick and Mills were outraged to be categorized with Gonzales and Swalwell. [Mills told reporters](#) Tuesday he has never sexually harassed his staff, that he’s not under indictment, and that “it was essentially just something where it was a bad breakup.” Cherfilus-McCormick’s office, meanwhile, noted [in a statement](#) to the press that the allegations against her “are not the same as those facing some of my colleagues,” and that “lumping them together, particularly with cases involving sexual assault and rape, is inaccurate and irresponsible.”

Still, their outcomes diverge in the short term. In an unusual sight, the Ethics Committee that is often criticized as moving too slowly in policing members is nearing the closure of its investigation into Cherfilus-McCormick, having found her guilty on 25 of 27 counts against her. It meets next week to recommend a sanction to the full House. Her time, with Luna already threatening an expulsion vote for shortly after the hearing, does not seem long. Mills’ case, meanwhile, remains before the committee. There’s [less consensus](#) between parties about whether immediate action should be taken against him.

It’s for the best, in the long run, that the Ethics Committee appears to have retained control over these cases amid the ongoing call for blood. There must be a floor underneath members’ ability to unilaterally force votes to disemploy their colleagues, lest it spiral into a regular stunt comprising most of the House’s roll-call votes. But it’s hard to deny that, at least in the egregious cases of Swalwell and Gonzales, swift justice needed to be served, and was. The garbage was accumulating a little too fast.

Get the best of news and politics

Sign up for Slate's evening newsletter.

Thanks for signing up! You can [manage your newsletter subscriptions](#) at any time.

You're already subscribed to the The Slatest newsletter. You can [manage your newsletter subscriptions](#) at any time.

We encountered an issue signing you up. Please try again, or [manage all your newsletter subscriptions here](#) .

Please enable javascript to sign up for newsletters.

Email address:

Send me updates about Slate special offers.

By signing up, you agree to our [Privacy Policy](#) and [Terms](#).

Sign Up

Produced by wallabag with tcpdf

Please open [an issue](#) if you have trouble with the display of this E-Book on your device.